

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC040925: VARTKES GHUKASYAN vs FCA US, LLC., et al.

06/30/2026 in Department 44

Demurrer to Third Amended Complaint

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions: (1) Defendant FCA’s Demurrer to Plaintiffs’ Third Amended Complaint (*opposed*), and (2) Defendant FCA’s Motion to Strike Plaintiffs’ Claim for Punitive Damages (*opposed*)

Motions

- (1) Defendant FCA’s Demurrer to Plaintiffs’ Third Amended Complaint, and
- (2) Defendant FCA’s Motion to Strike Plaintiffs’ Claim for Punitive Damages

Tentative Ruling

The demurrer to the TAC’s second cause of action for fraud by concealment SUSTAINED WITH LEAVE TO AMEND. The motion to strike is mooted by the sustaining of the demurrer.

Plaintiff is ordered to amend the complaint within 20 days.

Defendant shall give notice.

Discussion

The limited role of a demurrer is to test the legal sufficiency of a complaint. It is long-settled that a demurrer admits all material facts properly pleaded, but not contentions, deductions, or conclusions of law or fact. A court may also consider matters that may judicially noticed. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 976, 994; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (quoting *Serrano v. Priest* (1971) 5 Cal.3d 584, 591.) The complaint is given a reasonable interpretation, and is read as a whole, reading its parts in their context. (*Blank v. Kirwan*, *supra*, 39 Cal.3d at p. 318.)

A complaint showing on its face that a cause of action is time-barred is subject to demurrer. (Code Civ. Proc., § 430.10, subd. (e).) Defendant demurs to the second cause of action for fraudulent concealment on the ground that it is barred by the applicable statute of limitations, which is three years. (Code Civ. Proc., § 338, subd. (d).) A cause of action for fraud accrues when the aggrieved party discovers the facts constituting the fraud. (*Id.*)

Where a plaintiff relies upon delayed discovery or another tolling doctrine to avoid the statute of limitations, the plaintiff bears the burden of pleading facts demonstrating the applicability of that doctrine. The complaint must plead facts sufficient to permit the court to determine when the cause of action accrued and why the action is timely notwithstanding the apparent expiration of the limitations period. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808; *Saliter v. Pierce Brothers Mortuaries* (1978) 81 Cal.App.3d 292, 297.) “Mere conclusory assertions that delay in discovery was reasonable are insufficient and will not enable the complaint to withstand general demurrer.” (*Saliter*, *supra*, at p. 297.)

Here, Plaintiffs allege they acquired the subject vehicle on June 28, 2018, experienced defects beginning shortly thereafter, and presented the vehicle for warranty repairs in July 2018, November 2021, and again in late 2021 or early 2022, during which time the vehicle was out of service for weeks at a time. (TAC, ¶¶ 7, 14-17.) They filed their initial Complaint on March 21, 2025, more than six and a half years after the vehicle’s purchase.

The operative Third Amended Complaint was filed on February 17, 2026, and, like prior complaints, invokes numerous tolling doctrines, including delayed discovery, fraudulent concealment, equitable estoppel, the repair doctrine, class action tolling under *American Pipe*, and the Judicial Council's COVID-19 Emergency Rule. (TAC, ¶¶ 50-69.)

For purposes of this demurrer, the Court assumes Plaintiffs have sufficiently alleged the existence of the *Petro* putative class action by identifying the action, its filing date, its general subject matter, and by attaching the complaint as Exhibit B. The Court likewise assumes, without deciding, that Plaintiffs may ultimately be able to establish they fall within the proposed class alleged therein. The TAC nevertheless fails to allege facts demonstrating that the fraudulent concealment cause of action is timely.

The principal deficiency is that the TAC fails to plead a coherent chronology connecting accrual of the fraudulent concealment claim to the various tolling doctrines upon which Plaintiffs rely.

The TAC, like the complaints before it, alleges only that Plaintiffs discovered Defendant's wrongful conduct "shortly before the filing of the complaint." (TAC, ¶ 51.) It further alleges that Plaintiffs became suspicious only after the vehicle continued to exhibit symptoms following unsuccessful repair attempts. These allegations are conclusory. The TAC continues to fail to identify when that discovery occurred, what facts Plaintiffs allegedly discovered, how those facts were discovered, or why those facts could not reasonably have been discovered earlier.

Nor does the TAC connect the alleged discovery to the particular fraud asserted. The fraudulent concealment cause of action is premised upon Defendant's alleged concealment of a specific engine defect existing at the time of sale. The TAC alleges that Defendant knew the vehicle's 5.7L engine suffered from an inherent defect capable of causing loss of power, stalling, engine misfires, rough running, failure to start, engine failure, and similar engine-related conditions, and that Defendant fraudulently concealed that defect from Plaintiffs. (TAC, ¶¶ 29-40, 76-79.)

The repair history alleged in the TAC, however, does not correspond to that theory. Plaintiffs' first repair visit in July 2018 involved complaints regarding brake noises and a tire pressure monitoring sensor. Later repair visits that occurred before the filing of the original Complaint primarily involved transmission complaints, including replacement of a transmission seal, transmission inspection, and transmission repairs for which Plaintiffs allegedly paid more than \$5,000. (TAC, ¶¶ 14-17.) The TAC does not allege facts explaining how those brake- and transmission-related repairs revealed, concealed, delayed discovery of, or otherwise related to the alleged engine defect forming the basis of the fraudulent concealment claim.

Instead, the TAC refers generically to "defects," "symptoms of defects," and unsuccessful repair attempts without identifying which particular defect allegedly led Plaintiffs to discover the concealed engine defect shortly before filing suit. Because the TAC alleges multiple distinct vehicle conditions—including brake, transmission, electrical, water intrusion, and alleged engine-related conditions—but pleads fraud only as to the engine defect, the Court cannot determine from the face of the pleading what event allegedly placed Plaintiffs on inquiry notice of the particular fraud asserted.

The class action tolling allegations suffer from the same fundamental deficiency. Although Plaintiffs adequately identify the *Petro* class action, the TAC does not allege facts establishing how that action renders this fraudulent concealment claim timely. The TAC never alleges when the fraud claim accrued relative to the filing of *Petro*. If Plaintiffs contend the fraud claim accrued only shortly before filing suit in March 2025, the TAC does not explain what limitations period was suspended by the filing of *Petro* in May 2022. Conversely, if Plaintiffs contend the claim accrued before May 2022, the TAC does not identify the accrual date or plead facts permitting the Court to determine how much of the limitations period had elapsed before the filing of the putative class action.

The Court further notes that paragraph 54 alleges only that Plaintiffs' claims "were potentially tolled" by the *Petro* class action. While the Court does not construe Plaintiffs' use of the past tense as a judicial admission that class action tolling no longer applies, the allegation is nevertheless equivocal. Plaintiffs must plead ultimate facts demonstrating that class action tolling applies to their claim; it is insufficient merely to allege that the claim was "potentially" tolled.

The allegation illustrates the broader pleading defect that the TAC identifies the existence of a putative class action but does not allege the operative facts demonstrating that the filing of that action actually suspended the statute of limitations applicable to Plaintiffs' fraudulent concealment claim.

The same deficiency exists with respect to Plaintiffs' remaining tolling theories. Plaintiffs invoke the repair doctrine, fraudulent concealment, equitable estoppel, and Emergency Rule 9, but do not plead a chronology demonstrating when the statute began to run, how long any suspension lasted, or how any of those doctrines collectively render the March 21, 2025, filing timely.

The Court does not at this time find that any of Plaintiffs' asserted tolling doctrines are unavailable as a matter of law. Nor does the Court determine that *American Pipe* tolling ultimately cannot apply in this case. The Court concludes only that Plaintiffs have once again failed to plead sufficient facts demonstrating when the fraudulent concealment cause of action accrued and how the asserted tolling doctrines operate to render that claim timely in light of the March 2025 filing.

For these reasons, the demurrer to the second cause of action is sustained with leave to amend.

If Plaintiffs elect to amend, they shall plead with specificity: (1) when the fraudulent concealment claim accrued; (2) the time and manner in which Plaintiffs allegedly discovered the concealed engine defect; (3) why earlier discovery was not reasonably possible notwithstanding the repair history alleged; (4) the relationship, if any, between the repair history and the alleged engine defect; and (5) the facts demonstrating how each tolling doctrine upon which Plaintiffs rely renders the fraudulent concealment cause of action timely. (*Fox, supra*, 35 Cal.4th at p. 808; *Saliter, supra*, 81 Cal.App.3d at p. 297.)

Given that the Court has provided Plaintiffs with three opportunities to amend, the Court hereby notifies Plaintiffs that this fourth opportunity to cure defects will be Plaintiffs' last opportunity in the absence of an offer to the Court of additional facts that there is a reasonable possibility of curing defects. (Code Civ. Proc. § 430.41, subd. (e)(1).)

Any amended complaint shall be served and filed within 20 days.

The motion to strike is mooted by the sustaining of the demurrer. The Court declines to stay these proceedings pending resolution of the appeal in *Price v. General Motors* (B353231).

Counsel for Defendant is to give notice of the Court's ruling.